

HCJD/C-21

JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Murder Reference No. 502 of 2010

Criminal Appeal No. 2188 of 2010

Azmat Versus State

JUDGMENT

Date of Hearing: 08.07.2014 .
Appellant by: Ch. Muhammad Lehrasab Khan Gondal, Advocate .
Complainant by: Mr. Muhammad Zaman Mangat, Advocate .
State by: Mian Muhammad Awais, Deputy Prosecutor General .

Syed Shahbaz Ali Rizvi, J:- The appellant namely Azmat along with co-accused Nasim Bibi and Irshad Bibi (since acquitted), was tried in a case F.I.R. No.288 dated 01.06.2005 registered under Sections 302/34 P.P.C., at Police Station Kuthiala Sheikhan, District Mandi Baha ud Din, and was convicted and sentenced by learned Additional Sessions Judge, Mandi Baha ud Din, vide impugned judgment dated 30.08.2010 in the following terms: -

Death u/s 311 P.P.C. for the murder of Faiz Ahmad, Shahnaz Bibi, Shaista & Saadia (deceased) on each count in terms of Fasad Fil Arz.
The appellant was ordered to be hanged by his neck till his death.

2. Through this single judgment, we propose to decide Murder Reference No.502/2010 transmitted by the learned trial

Court under Section 374 Cr.P.C. for confirmation or otherwise of the sentence of the convict Azmat along with Criminal Appeal No.2188 of 2010 filed by the appellant.

3. The woeful information of the murder of four persons namely Faiz Ahmad, Shahnaz Bibi, Shaista and Saadia was given to the police by Muhammad Salehooon, the complainant (died during the trial before recording of his statement) through application (Ex.PQ), which culminated into the chalking of F.I.R. (Ex.PB), whereby he disclosed that he along with Mukhtar Ahmad (PW.9) and Bashir Ahmad (CW.1) went to the house of his cousin Faiz Ahmad to inquire about the health. They slept in the courtyard of the house while Faiz Ahmad, his wife Shahnaz Bibi, his daughters Shaista and Saadia slept in a room. The appellant and his co accused Naseem Bibi and Irshad Bibi slept in the *Veranda*. At about 3:00 nocturnal, the complainant along with the said persons woke up hearing the noise and in the light of a bulb, they saw that Naseem Bibi and Irshad Bibi had caught hold of Faiz and Shahnaz while the appellant inflicted *Toka* blows on the right side of the neck and on the left hand of Faiz Ahmad. Then the appellant inflicted *Toka* blows on the front side of neck and chest of Shahnaz Bibi. Thereafter, the appellant gave *Toka* blows on the left ear and neck of the minor Shaista and then

inflicted *Toka* blow on the right side of the neck of the minor Saadia. He also inflicted *Toka* blows on all the deceased. The complainant along with his fellows came forward but the appellant, brandishing his *Toka*, threatened them to kill and fled away. All the injured succumbed to the injuries at the spot.

The motive behind the occurrence was stated to be that Faiz Ahmad, deceased, had solemnized second marriage with Shahnaz Bibi due to which a dispute often arose between the deceased Faiz Ahmad and the appellant.

4. After registration of formal F.I.R. Aziz Ahmad, Sub Inspector (PW-10) carried out the investigation of the case who recorded the statement of Muhammad Salehoon, the complainant (Ex.PQ) and sent the same for registration of the case; inspected the dead bodies and prepared the injury statements; sent the dead bodies for postmortem examination; secured the blood stained cotton swabs vide recovery memos Ex.PN & Ex.PO; recorded the statements of PWs under Section 161 Cr.P.C; prepared the un-scaled site plan of the place of occurrence Ex.PAD; secured the last worn clothes of the deceased produced before him by Iftikhar Ahmad (PW-5) vide recovery memo Ex. PC, Ex. PF, Ex. PD & Ex.PE; on 23.06.2005 he arrested the appellant/accused and on 24.06.2005 the appellant got recovered weapon of offence i.e. *Toka* which

was taken into possession vide recovery memo Ex.PM; prepared the formal papers, got finalized the report under Section 173 Cr.P.C. to send the same to the court for commencement of the trial.

5. Learned trial court after observing all the pre-trial codal formalities, indicted the appellant and his co accused to which they pleaded not guilty and claimed to be tried.

6. The prosecution was asked to lead its evidence, which produced as many as 11 witnesses to prove its case.

Dr. Umar Murtaza (PW-6) conducted postmortem examination on the dead body of Faiz Ahmad and observed the following injuries on his person:-

INJURIES

1. *At middle of neck it was decapitated, only a tag of skin about 12 cm was attached on back of neck, wound was incised, grapping and colour was dark red.*
2. *Incised wound 20x10 cm on front of upper part chest crossing midline going deep. Wound was extended up to injury No.1.*
3. *Incised wound 12x8 cm on front of left shoulder going deep, grapping.*
4. *Incised wound 8x5 cm on back of left hand with avulsed skin which is attached proximally. Bones of hand and wrist were visible and sliced cut, the pieces of cut bone are attached in side of avulsed skin. Tendons was visible and cut superficial.*
5. *A stitched old wound having 14 stitches on right side of head extending from right ear tragus to front of head having black colour scabs.*

OPINION

The doctor was of the opinion that all the injuries were ante mortem. Injury No.5 was previous injury already treated. Other injuries were caused by heavy sharp edged weapon. Cause of death was injuries No.1 to 4 collectively, however, injuries No.1 & 2 were individually sufficient to cause death. Manner of death was shock/coma due to excessive bleeding and cut spinal cord led to cardio respiratory failure in ordinary course of nature. The probable time that elapsed between injuries and death was spontaneous and between death and postmortem was 12 to 15 hours.

Dr. Nazli Saleem Wyne, WMO, (PW-7) conducted the postmortem examination of Shahnaz Bibi (deceased), Shaista & Saadia (deceased), the minors, on 01.06.2005 and observed as under:-

SHAHNAZ BIBI:

EXTERNAL INJURIES

1. *A completely cut neck was seen in front at the level of base of neck and the head along with neck was separated from the body at the level of base of neck from front and behind and only one tag of skin on left side was attaching, otherwise head and neck was completely separated from the body.*
2. *An incised wound 7x4 cm skin deep on the left breast, above the left nipple with regular margins and spindle in shape.*

3. *An incised wound 2x2 cm skin deep on right side under chin.*

OPINION

The doctor was of the opinion that all the injuries were ante mortem and caused by a sharp edged weapon. Injury No.1 was the cause of death as it separated the head and neck from the body at the level of base of neck which led to irreversible loss of function of all the vital system of the body. Probable time between injury and death was immediate while between death and postmortem was 16 to 19 hours.

SHAISTA:

EXTERNAL INJURIES

1. *An incised wound was present on middle of front of neck, 4x3 cm into going deep, exposing and cutting all structures present in the neck at mid level; with regular margins and wound is spindle in shape.*
2. *An incised wound on left side of head extending from behind the left ear, cutting the left ear into two halves, 7x3 cm into going deep, linear in shape with regular margins, exposing left side of skull bone and left mandible and cutting internal ear.*
3. *An incised wound on right side under chin, extending to back of right side of the neck, 6x4 cm into deep, linear in shape with regular margins and exposing and cutting the vertebrae in neck.*

OPINION

The doctor was of the opinion that all the injuries were ante mortem and caused by a sharp edged weapon. Cause of

death was injuries to neck which led to irreversible loss of function of all the three vital systems in body. The probable time between injury and death was immediate while between death and postmortem was 16 to 19 hours.

SAADIA:

EXTERNAL INJURIES

1. *An incised wound was present in front and middle of the neck, 7x3 cm into going deep, spindle shape with regular margins, exposing and cutting all the structures present in the neck, at the mid neck level.*
2. *An incised wound 7x2 cm into deep, in front at the level of base of neck, linear in shape with regular margins, exposing and cutting all structure in neck, at the level of base of neck.*
3. *An incised wound 3x1.5 into deep, extending from right corner of the mouth to right side of under chin, linear in shape with regular margins, exposing and cutting the right mandible bone.*

OPINION

The doctor was of the opinion that all the injuries were ante mortem and caused by a sharp edged weapon. Cause of death was injuries to neck which led to irreversible loss of function of all the three vital systems in body. The probable time between injury and death was immediate while between death and postmortem was 16 to 19 hours.

The ocular account was furnished by Mukhtar Ahmad (PW-9), who almost narrated the story of the occurrence as

contained in the F.I.R. While Ali Ahmad, PW-1, Gulzar Ahmad, Draftsman, (PW-2), Muhammad Arshad, constable (PW-3), Mukhtar Ahmad, Head Constable (PW-4), Iftikhar Ahmad, Constable (PW-5), Muhammad Arif, Constable (PW-8) and Muhammad Aslam, ASI (PW-11) are formal in nature.

7. The prosecution gave up Bashir Ahmad PW being won over and by tendering into evidence the reports of the Chemical Examiner ExP-AF/1-3, closed its evidence.

8. Thereafter the statement of the appellant was recorded under Section 342 Cr.P.C., wherein he negated the allegations levelled against him and professed his innocence. In reply to the question “*why this case registered against you and why the PWs have deposed against you?*”, the appellant, , replied as under:-

“All the PWs are related inter se, and they have deposed falsely against me and my co-accused. In fact I or my other our family member had no dispute with our father Faiz (deceased) ever. Complainant and PW Mukhtar along with other brothers had no visiting terms with our family rather they were our sworn enemy because Mst. Kaneez Bibi wife of PW Mukhtar and daughter in law of complainant had illicit relations with the deceased Faiz our father. Due to this dispute complainant and his sons especially Mukhtar PW were in efforts to kill deceased Faiz Ahmad. 2/3 months prior to murder of our father Faiz Ahmad (deceased) complainant along

with his sons including Mukhtar PW attacked upon our father and inflicted injuries on his person. Due to illicit relations of Faiz Ahmad (deceased with the wife of Mukhtar Ahmad, deceased, complainant and his sons including Mukhtar PW had grudge against our father and to his family member. We have been involved falsely in this case due to enmity after due deliberation, consultation and concoction. In fact complainant party are the actual culprits. Father of Mst. Shahnaz Bibi also filed complainant against the complainant and his sons including Mukhtar PW for the murders of Faiz Ahmad along with Mst. Shahnaz Bibi and his two daughters. I along with other co-accused are totally innocent in this case. We had been insisting during investigation about the involvement of complainant party. But no one bothered to hear us.”

The appellant did not appear as his own witness to make statement on oath under Section 340 (2) Cr.P.C. to discard the allegations levelled against him by the prosecution. However, on the application of the appellant/accused statement of Bashir Ahmad was recorded by the learned trial court as CW-1.

9. After conclusion of trial the appellant was convicted and sentenced as mentioned above by the learned trial Court.

10. Learned counsel for the appellant has argued that the appellant is innocent and has falsely been involved by the complainant; that the story narrated by the prosecution is after

thought and concocted one which is negated by the evidence on record; that the witnesses are interested witnesses being closely associated and related interse; that the prosecution evidence has been disbelieved by the learned trial court to the extent of co accused Naseem Bibi and the credibility of evidence is not divisible, so the benefit of doubt should be extended to the appellant; that in fact one Kaneez Bibi, wife of PW-4 Mukhtar Ahmad and daughter in law of complainant, had illicit relations with the father of the appellant, deceased Faiz Ahmad while Mukhtar Ahmad etc were in efforts to kill Faiz Ahmad and they had also attacked his father/deceased Faiz Ahmad earlier; that there was no motive for the appellant to commit such a heinous crime, especially murder of his father; that the narration by prosecution witnesses regarding motive is neither established nor believable; it is not the accused to prove his innocence but the prosecution has to stand on its own legs; recovery of alleged crime weapon is planted one and even otherwise the same is inconsequential in the absence of Serologist report and that the prosecution has miserably failed to perform its legal duty in proving the case beyond shadow of reasonable doubt and prayed for the acceptance of this appeal.

11. Conversely, learned Deputy Prosecutor General for the State, assisted by learned counsel for the complainant,

vehemently opposed the contentions raised by learned counsel for the appellant and maintained that presence of witnesses at the place of occurrence is natural; that the appellant has committed brutal murder of his father and other family members; that the defence plea taken by the appellant is afterthought; that recovery of weapon of offence has been proved against the appellant and he is fully connected with the occurrence; that the rule of *falsus in uno falsus in omni bus* does not have judicial recognition in Pakistan, therefore, the appellant does not deserve any leniency and the learned trial court has rightly convicted and sentenced the appellant, so the instant appeal merits dismissal.

12. We have heard the learned counsel for the appellant, the learned Deputy Prosecutor General and perused the record with their able assistance.

13. We have observed that the fateful and gruesome occurrence took place on 1.6.2005 at 3:00 a.m. while the matter was reported to the police at 6:30 a.m. on the same morning when the police reached at the place of occurrence i.e. house of the deceased as well as the appellant. Keeping in view the relationship between the deceased and the accused persons, inactivity of the complainant and the eye witnesses regarding approaching the Police Station to report the incident till the

arrival of the police at the scene of incident at 6:30 a.m. is not unnatural. Moreover, no unchaste or illegal benefit has been derived by the prosecution from the delay of 3 ½ hours in reporting the matter as all injuries to all the four deceased persons are attributed to the single person, the appellant. Time and place of occurrence is not denied by the defence.

14. The prosecution has produced Mukhtar Ahmad PW.9 to furnish the ocular account of the incident and to prove the charge against the appellant, who has given a straightforward narration of the occurrence, during his statement before the learned trial court, he remained stuck to the stand, taken by the complainant (since dead) and himself u/s 154 Cr.P.C and 161 Cr.P.C respectively. The defence could not point out even a single deviation and improvement in his earlier statement during the cross examination. The defence also remained fail to derive anything beneficial to the appellant, from the testimony of Mukhtar Ahmad PW.9 during cross examination. Similarly, no conflict between statement of PW.9 and the other pieces of evidence is available on the file. So far as the presence of PW.9 along with his father, the complainant and uncle Bashir Ahmad (given up by the prosecution being won over and later on recorded as CW.1 on the application of the appellant) is concerned; we are of the opinion that in our

rural society, staying of such close relatives in the house of an ailing relative, which is evident from the statement of PW.6 M.O Dr. Umar Murtaza who has explained injury No.5 in his statement that under wound No.5 (stitched), fracture of skull present and meninges underlying injuries and some portion of brain matter cut and that “injury No.5 was previous injury, already treated, is very much in accordance with the cultural norms. The complainant was the first cousin of the deceased, PW.9 was the real son of the complainant while Bashir Ahmad CW.1 was the step brother of the deceased and their presence at the relevant time as narrated by PW.9, in the circumstances of the case, is probable, believable and established during investigation as well as in the trial. Moreover, the closed eyes and mouth of all the deceased persons, as is reflected in the post mortem reports Ex.PG, Ex.PH, Ex.PJ and Ex.PK show that the dead bodies were attended by the witnesses immediately after the occurrence. While the presence of the inmates of the house including the accused persons, immediately after the occurrence and when the police arrived at the spot, is not established, had the complainant and the PWs committed the occurrence as alleged by the appellant he should have been present at the spot at the time when police arrived there but it was not so, which also confirms that the occurrence was witnessed by the eye

witnesses given in the FIR. The evidence furnished by PW.9 who is having no reason to falsely implicate the appellant in a case in which the deceased persons are more closely related to the appellant than to the complainant and PW.9, even no such direct motive or enmity between the appellant and the complainant or PW.9 is alleged by the defence during the trial. Even otherwise, PW.9 did not try to improve his statement by attributing any injury to the lady co accused of the appellant as it has become very common in our society to distribute the injuries available on the persons of the victims amongst the accused persons. We have not found an iota of evidence sufficient to doubt the veracity of testimony of PW.9 Mukhtar Ahmad, which is confidence inspiring, forthright and trustworthy.

So far as the contention, raised by the learned counsel for the appellant regarding the credibility of sole witness in a case of capital punishment is concerned; we are of the opinion that it is not the quantity of the witnesses, which weighs with the courts rather the quality of evidence is the sole and prime consideration as is repeatedly held by the Hon'ble Courts. In criminal cases it is the quality and not the quantity of the evidence which settles the guilt or innocence of the accused and conviction can be based on testimony of a single witness even in a murder case. While holding so, we are fortified by the dictum of law laid down by the Hon'ble Supreme Court of

Pakistan in the case titled “Allah Bakhsh v. Shammi reported as PLD 1980 SC 225, it he held as under: -

“...in a murder case conviction can be based on the testimony of a single witness, if the Court is satisfied that he is reliable. In other words, the emphasis is on the quality of evidence, and not on its quantity.”

Here we are also guided by the dictum laid down by the Hon’ble Supreme Court of Pakistan in another case reported as “Muhammad Mansha vs. The State” (2001 SCMR 199) wherein at page 204, it was enunciated as under:-

“6. ...The question as formulated hereinabove as to whether conviction could have been awarded on the basis of solitary statement of a witness has been examined at first instance in the light of Article 17 of the Qanun-e-Shahadat Order, 1984, (section 134 of the Evidence Act, 1872). The said Article is reproduced hereinbelow for ready reference:--

“17. Competence and number of witnesses.---(1) The competence of a person to testify and the number of witnesses required in any case shall be determined in accordance with the Injunctions of Islam as laid down in the Holy Qur’an and Sunnah.

(2) Unless otherwise provided in any law relating to the Enforcement of Hudood or any other special law--

(a) in matters pertaining to financial or future obligations, if reduced to writing, the instrument shall be attested by two men, or one man and two women, so that one may remind the other, if necessary, and evidence shall be led accordingly; and

(b) in all other matters, the Court may accept, or act on, the

testimony of one man or one woman, or such other evidence as the circumstances of the case may warrant.”

7. A bare perusal would reveal that the language as employed in the said Article 17(1)(b) is free from any ambiguity and no scholarly interpretation is required. The provisions as reproduced hereinabove of the said Article would make it abundant clear that particular number of witnesses shall not be required for the proof of any fact meaning thereby that a fact can be proved only by a single witness “it is not seldom that a crime has been committed in the presence of only one witness, leaving aside those cases which are not of uncommon occurrence, where determination of guilt depends entirely on circumstantial evidence. If the Legislature were to insist upon plurality witnesses, case where the testimony of a single witness only could be available in proof of the crime, would go unpunished. It is here that the discretion of Presiding Judge comes into play. The matter thus must depend upon the circumstances of each case and the quality of the evidence of the single witness whose testimony has to be either accepted or rejected. If such a testimony is found by the Court to be entirely reliable, there is no legal impediment to the conviction of the accused person on such proof. Even as the guilt of an accused person may be proved by the testimony of a single witness, the innocence of an accused person may be established on the testimony of a single witness, even though considerable number of witnesses may be forthcoming to testify to the truth of the case for the prosecution. The Court is concerned with the quality and not with the quantity of the evidence necessary for proving or disproving a fact”. (*Principles and Digest of the Law of Evidence by M. Monir, page 1458*). ”

Same view was reiterated by the Hon’ble Supreme Court in the case titled “Niaz-ud-Din and another v. The State and another” reported as 2011 SCMR 725.

In view of the above, as we have discussed, the testimony of the sole witness Mukhtar Ahmad PW.9 is forthright, confidence inspiring and being so conviction can be based even on the basis of his solitary statement.

15. Now coming to the contention raised by learned counsel for the appellant regarding the indivisibility of the credibility of the prosecution evidence available on record, we have observed that the case of acquitted co accused namely Nasim Bibi and Irshad Bibi is different from the case of present appellant. The statement of PW.9, the eye witness, is sufficiently corroborated by the medical evidence, furnished by PW.6 Dr. Umar Murtaza and PW.7 Dr. Nazli Saleem Wyne. While the allegation against the acquitted co accused lady was not plausible which also remained uncorroborated during the trial. Moreover, the principle of "*falsus in uno falsus in omni bus*" is not recognized in our judicial system rather the courts are expected to sift the grain from the chaff, which, in present case, has rightly been done by the learned trial court. The prosecution evidence, against the appellant, is confidence inspiring; hence this objection is not tenable. So far as the evidence of Bashir Ahmad CW.1 is concerned; we have observed that during the investigation he never denied his statement recorded u/s 161 Cr.P.C, duly got confronted by learned counsel for the complainant during cross examination He never challenged the correctness of the same prior to 5.4.2010 (while the occurrence took place on 01.06.2005), when he appeared before the learned trial court to get his

statement recorded and the objection was raised by PW.9 by holding that he had been won over by the accused party. No evidence is available on record regarding his dissatisfaction or denial to the extent of his statement recorded under section 161 Cr.P.C. The perusal of the order sheet of the learned trial court also reflects that he had been appearing in the trial in the company of the complainant till his (complainant's) death in 2010. The statement of Bashir Ahmad as CW.1 is not at all plausible and confidence inspiring. Had the stance of the complainant and PW.9 been incorrect and false, he would have come forward to rescue the appellant and his co accused on the very first day because of his relationship with them, which further shows that he changed his mind after the lapse of about five years and after the death of the complainant due to subsequent changes and developments, as alleged by the prosecution against him. In this view of the matter, his testimony as CW.1 is not trustworthy and plausible; hence, brushed aside.

16. So far as the medical evidence is concerned; we have observed that the same is in consonance with the ocular account, given by Mukhtar Ahmad PW.9 regarding the number and seat of injuries and even the weapon of offence stands explained as sharp-edged coupled with proving that the injuries

were ante mortem and were sufficient to cause death in an ordinary course of nature, which also proved that all the deceased persons died their unnatural death due to the injuries attributed to the appellant.

17. As regards the recovery of weapon of offence, recovered on the pointing out of the appellant, there is no report of Serologist to explain about the fact as to whether the same was stained with blood and more so it was stained with human blood and as such, in the absence of any such report, the recovery of weapon, in this case, has become inconsequential.

18. The motive alleged by the prosecution is the second marriage of the deceased Faiz Ahmad with Shehnaz Bibi deceased, three years prior to the fateful occurrence. We have given our keen consideration to the prosecution evidence regarding the motive part of the occurrence and observed that admittedly, the marriage took place about three years before the occurrence and both the wives were living in the same house with their husband Faiz Ahmad deceased and the appellant was also residing in the same house while the prosecution is silent about the circumstances, which became the immediate cause of the brutal and merciless murder of all the four deceased persons and what happened immediately and what became the reason for this occurrence, prior to the occurrence, are still shrouded in

mystery. No specific time or period of any previous incident of quarrel between the deceased Faiz Ahmad and the accused persons, has been given by the prosecution and even no independent evidence has been brought on record in this context during the trial and these circumstances have led us to hold that the prosecution remained unable to prove the motive part of the occurrence. Even the prosecution could not bring on record any motive, available to the appellant, to murder two minors namely Shaista aged about two years and Saadia aged about one month.

19. Now coming to the defence plea, taken by the appellant, we have observed that the plea taken by him is not plausible and believable as the stance taken by the defence is that the deceased Faiz Ahmad was having illicit relations with one Kaneez Bibi, wife of Mukhtar Ahmad PW.9 and that the complainant Muhammad Salehoon (since dead) along with Mukhtar Ahmad PW.9 and his other son committed the murder of the deceased persons. The perusal of the evidence has reflected that said Kaneez Bibi was the real niece of the deceased Faiz Ahmad and the defence could not lead any cogent evidence to prove its allegation of existence of such illicit relations between the deceased Faiz Ahmad and Kaneez Bibi. Moreover, the defence also remained fail to explain

motive against the complainant party to murder the innocent Shehnaz and her minor daughters. The more important is that had the complainant party committed the murder of all the deceased persons, the appellant and his lady co accused would have been the natural eye witnesses and complainant of the occurrence being the inhabitants of the said house. The absence of the appellant and his lady co accused from the investigation on the first day, confirms the guilt of the appellant, in connection with the murder of his real father, step mother and two step minor sisters. No plausible and independent evidence has been produced by the defence to prove its defence version and even the appellant could not dare to appear in the witness box u/s 340(2) Cr.P.C; hence we are of the firm opinion that the defence plea is not confidence inspiring and believable and the same stands discarded.

20. It would not be out of place to mention over here that during the trial, an application u/s 345 Cr.P.C for compounding the offence was moved by the appellant/accused and Amjad Iqbal son of Faiz Ahmad (deceased), Manak Khan father of Shahnaz Bibi (deceased), Shahnaz Kausar and Shumaila Shaheen daughters of the Faiz Ahmad (deceased) also got recorded their statements while appearing as AW-1, AW-2, AW-3 and AW-4 respectively but the learned trial court, vide

its order dated 28.10.2006, refused to allow the said application, keeping in view the manner of the occurrence, which got finality up to the Hon'ble Supreme Court of Pakistan.

21. For what has been discussed above, we have come to an irresistible conclusion that the prosecution has succeeded to prove its case against the appellant beyond shadow of any reasonable doubt through the confidence inspiring ocular account, furnished by Mukhtar Ahmad PW.9, corroborated by medical evidence, which is sufficient to uphold the conviction of the appellant recorded by the learned trial court. However, so far as the quantum of sentence is concerned; we are of the opinion that keeping in view the fact that the prosecution could not prove sufficiently the motive of the occurrence against the appellant and the real facts, in our view, about the immediate cause of murder and that what happened between the deceased and the accused persons prior to the occurrence, are still shrouded in mystery and also that recovery of *Toka* is inconsequential to the prosecution case, having light from the judgment titled **"Ghulam Mohy-ud-Din alias Haji Babu and others v. The State"** reported as **2014 SCMR 1034** we are of the lenient view that the sentence of life imprisonment shall meet the ends of justice, in the peculiar circumstances of the case in hand, therefore, while maintaining the conviction of the

appellant Azmat under section 311 PPC for the murder of Faiz Ahmad, Shehnaz Bibi, Shaista and Saadia deceased, his sentence of death on four counts is converted into imprisonment for life on four counts. Benefit of section 382-B, Cr.P.C shall be extended to the appellant and the sentences shall run concurrently. This appeal No.2188 of 2010 stands dismissed with the above modification in the quantum of sentence of the appellant.

Murder Reference No.502 of 2010 is answered in the NEGATIVE and the sentence of death of Azmat (convict) is NOT CONFIRMED.

(Abdul Sami Khan)
Judge

(Syed Shahbaz Ali Rizvi)
Judge

Approved For Reporting

(Abdul Sami Khan)
Judge

(Syed Shahbaz Ali Rizvi)
Judge